

April 11, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15229

EXPIRATION DATE: March 31, 2014

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Linde Gas North America LLC
NEW PROVIDENCE, NJ
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of Chlorine, Division 2.3 material in DOT 106A500X and DOT 106A500W multi-unit tank car tanks that are not equipped with a pressure relief devices. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 179.300-15 in that a pressure relief device is required, except as provided herein.
5. BASIS: This special permit is based on the application of Linde Gas North America LLC dated January 20, 2011 submitted in accordance with § 107.105 and the public proceeding thereon.

April 11, 20126. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chlorine	2.3	UN1017	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT 106A500X multi-unit tank car tank described on Columbiana Boiler Company drawing number 12660-EXP, rev 8, and a DOT 106A500W multi-unit tank car tank described on Columbiana Boiler Company drawing number 102303-S, rev 4. Pressure relief devices are not required. Any openings for pressure relief devices must be plugged using solid plugs.

b. OPERATIONAL CONTROLS -

The following additional requirements apply:

- (1) All multi-unit tank car tanks are to be stored away from heat sources.
- (2) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the multi-unit tank car tanks are not fitted with pressure relief devices and provide appropriate guidance in case the tanks are exposed to fire.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING:

(1) Each tank must be plainly marked near the other prescribed markings in letters at least four inches high on a contrasting background, "DOT-SP 15229."

(2) Each multi-unit tank must be plainly and durably marked "For Export Only" near the special permit number marking.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Cargo Vessel, and Rail Freight.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, rail freight or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: FRA